ARB/C058/2020 – VARIATION OF A FREEZING ORDER

IT IS BEING NOTIFIED that by a decree dated 26th February, 2025 given by the Criminal Court – (Hon. Mister Justice Dr Neville Camilleri LL.D.). In the case:

The Republic of Malta

Versus

SHAWN HIGGANS, self-employed, 40 years, son of John and Maria Carmela née Farrugia, born in Pietà, Malta on the 9th May, 1984, residing at 21, Pjazza Antoine de Paule, Paola and holder of Maltese Identity Card bearing number 236584M

The Court AUTHORISES the accused **SHAWN HIGGANS** to execute the following payments from the bank account registered in the name of a third party ending in -0695 and held with APS Bank Limited, as listed hereunder:

a) Payment for the renewal of the boat insurance policy listed in the Court decree dated 26th February, 2025.
b) Payment in the amount of €80 to Elmo Insurance Limited representing the boat insurance policy.

This variation is being published in terms of Article 36 (4)(b)(ii) of the Proceeds of Crime Act, Chapter 621 of the Laws of Malta, following a freezing order which decree was given by the Court of Magistrates (Malta) as a Court of Criminal Inquiry (Magistrate Dr Caroline Farrugia Frendo LL.D.) on the 25th November, 2020 which was published in the Government Gazette on the 1st December, 2020 where the court ordered the attachment in the hands of third parties in general of all moneys and other movable or immovable property due or pertaining or belonging to **SHAWN HIGGANS**.

Today, 5th March, 2025

Mr Gabriel Bonanno
Acting Director, Asset Recovery Bureau

ARB/C058/2020 – VARJAZZJONI TAL-ORDNI TAL-IFFRIŻAR

IKUN JAF KULĦADD illi b'digriet mogħti fil-26 ta' Frar, 2025 mill-Qorti Kriminali – (Onor. Imħallef Dr Neville Camilleri LL.D.). Fil-kawża fl-ismijiet:

Ir-Repubblika ta' Malta

Kontra

SHAWN HIGGANS, jaħdem għal rasu, 40 sena, iben John u Maria Carmela xebba Farrugia, imwieled fil-Pietà, Malta fid-9 ta' Mejju, 1984, residenti ġewwa 21, Pjazza Antoine de Paule, Paola u detentur ta' Karta tal-Identità Maltija bin-numru 236584M.

Il-Qorti AWTORIZZAT lill-imputat **SHAWN HIGGANS** sabiex jeżegwixxi s-segwenti pagamenti mill-kont tal-bank intestat f'isem terza persuna li jispiċċa -0695 u li huwa miżmum mal-APS Bank Limited, hekk kif imniżżla sussegwentement:

a) Pagament tat-tiġdid tal-assigurazzjoni tad-dgħajsa msemmija fid-digriet tal-Qorti datat 26 ta' Frar, 2025.
b) Pagament fl-ammont ta' €80 lill-Elmo Insurance Limited rappreżentanti it-tiġdid tal-assigurazzjoni tad-dgħajsa.

Din il-varjazzjoni qed issir ai termini tal-Artikolu 36 (4)(b)(ii) tal-Att dwar ir-Rikavat mill-Kriminalità, Kapitolu 621 tal-Liġijiet ta' Malta, wara digriet ta' ordni tal-iffriżar mogħti mill-Qorti tal-Maġistrati (Malta) bħala Qorti Struttorja (Maġistrat Dr Caroline Farrugia Frendo LL.D.), fil-25 ta' Novembru, 2020 li ġiet ippublikata fil-Gazzetta tal-Gvern fl-1 ta' Diċembru, 2020 fejn il-Qorti ordnat iż-żamma u s-sekwestru f'idejn terzi persuni b'mod ġenerali, tal-flejjes u l-propjetà mobbli jew immobbli kollha li huma dovuti lil, jew imissu lil, jew li huma propjetà ta' **SHAWN HIGGANS**.

Illum, 5 ta' Marzu, 2025

Is-Sur Gabriel Bonanno
Aġent Direttur, Uffiċċju għall-Irkupru tal-Assi